

24STCV25722 24STCV25722

County: los-angeles

Division: Civil Law and Motion

Department: 311

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Case Number: 24STCV25722 Hearing Date: July 8, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

24STCV25722

REGINA

HALL vs JUAN F. PEREZ, et al.

July

8, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF'S MOTION FOR LEAVE TO FILE FIRST AMENDED COMPLAINT.

RULING:

The Court continues the Motion
to August 7, 2026, at 8:30 a.m., for a corrected Proof of Service to be served
and filed within five days.

I.

BACKGROUND

On October 3, 2024, REGINA
HALL (Plaintiff) filed a Complaint against JUAN F. PEREZ and JP CONTRACTOR
SERVICES, INC. (Defendants).

The proposed First
Amended Complaint (FAC) lists Causes of Action for:

(1)
BREACH OF CONTRACT;

(2)
FRAUD;

(3)
NEGLIGENCE; and

(4)
BREACH OF FIDUCIARY DUTY.

(Charles G. Gomez
Declaration, filed 6/1/26, Exhibit B.)

Plaintiff alleges that Defendants
breached a written contract to do remodeling at 4805 Hasekian Rd., Tarzana, by not
completing work and negligently supervising a subcontractor.

On June 1, 2026, Plaintiff
filed the Motion for Leave to File FAC, to add more details about damages.

There is no Opposition
filed, which may be attributable to the Proof of Service stating counsel's
former address and email addresses, instead of those reflected in Defendants April
7, 2026 Notice of Change of Address. (See, e.g., Lee v. Placer Title Co. (1994) 28 Cal.App.4th 503, 509-510

[where notice was not mailed to the “office address as last given by that person on any document filed in the cause,” per Code Civ. Proc., § 1013, subd. (a), notice was ineffective, and order entered was void].)

II.

LEGAL STANDARD

Code of Civil Procedure

section 473, subdivision (a)(1) allows courts “in furtherance of justice” to “allow a party to amend any pleading ... in any ... respect”, which is reviewed for abuse of discretion and requires courts to consider factors including the conduct of moving parties and belated presentations of amendments without a showing of excuse. (*Emerald Bay Cmty. Assn. v. Golden Eagle Ins. Corp.* (2005) 130 Cal.App.4th 1078, 1097.)

“When a trial court denies leave to amend, the decision has been upheld on grounds such as the fact that the amendment contained objectionable subject matter or because of the conduct of the moving party or belated presentation of the amendment.” (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 759.)

“ ‘If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend....’ ” (*Jaimez v. DAIHOS USA, Inc.* (2010) 181 Cal.App.4th 1286, 1308.) “[D]iscretion should be exercised liberally in favor of amendments, for judicial policy favors resolution of all disputed matters in the same lawsuit.” (*Kittredge Sports Co. v. Superior Court* (1989) 213 Cal.App.3d 1045, 1047.)

III.

ANALYSIS

The reasons Plaintiff

provides for amending are to allege damages more particularly based on the same general set of facts, and to “fully address the harm suffered ... as alleged in the original Complaint and to deter Defendants and other contractors from violating California’s contractor licensing laws, as intended by the California legislature.” (Motion, 5:20-24.)

The Court has received no

Opposition raising any issues to address.

"If the original pleading has not framed the issues in an articulate and precise manner, a plaintiff should not be precluded from having a trial on the merits." (Honig v. Fin. Corp. of Am. (1992) 6 Cal.App.4th 960, 965.)

Here, it appears that Plaintiff is merely adding more details to the same claims and general set of facts.

IV.

CONCLUSION

The Court continues the Motion, for a corrected Proof of Service.